

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER

0044043035

PAGE 1 OF 30

2. CONTRACT NUMBER

3. AWARD/EFFECTIVE DATE

4. ORDER NUMBER

5. SOLICITATION NUMBER
140P5126R0009

6. SOLICITATION ISSUE DATE

05/07/2026

7. FOR SOLICITATION INFORMATION CALL:

a. NAME

Ashley Warcewicz

b. TELEPHONE NUMBER (No collect calls)

8. OFFER DUE DATE/ LOCAL TIME
06/08/2026 1700 ED

9. ISSUED BY

CODE **PSE**

NPS SER EAST MABO
100 Alabama St., SW
1924 Building
Atlanta GA 30303-8701

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: **100.00%** FOR:

☒ SMALL BUSINESS

☐ WOMEN-OWNED SMALL BUSINESS (WOSB)

NORTH AMERICAN
INDUSTRY CLASSIFICATION
STANDARD (NAICS):

☐ HUBZONE SMALL BUSINESS

☐ ECONOMICALLY DISADVANTAGED

561730

☐ SERVICE-DISABLED

☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB)

SIZE STANDARD:

☐ VETERAN-OWNED

☐ 8(A)

\$9.5

☐ SMALL BUSINESS (SDVOSB)

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED

☒ SEE SCHEDULE

12. DISCOUNT TERMS

13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)

13b. RATING

14. METHOD OF SOLICITATION REQUEST
☐ REQUEST ☐ INVITATION ☒ FOR PROPOSAL
(RFQ) (IFB) (RFP)

15. DELIVER TO

CODE **0011283000**

See Schedule

16. ADMINISTERED BY

CODE **PSE**

See Schedule

17a. CONTRACTOR/ OFFEROR

CODE

FACILITY
CODE

18a. PAYMENT WILL BE MADE BY

CODE

TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	ADMINISTERED BY: NPS SER EAST MABO 100 Alabama St., SW 1924 Building Atlanta GA 30303-8701 US DELIVER TO: Continued... (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT (For Government Use Only)

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. ADDENDA FAR 52.212-3 AND 52.212-5 ARE ATTACHED.

☐ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA

☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN **1** COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED: _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (Type or print)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (Type or print)

31c. DATE SIGNED

Ashley Warcewicz

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	NPS, Blue Ridge Parkway Headquarters, 199 Hemphill Knob Rd Asheville NC 28803-8686 US This is a combined synopsis/solicitation for commercial services prepared in accordance with the format in subpart 12.6, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued. This project is for clearing scenic vistas along the Blue Ridge Parkway at designated locations in Virginia. This is a Request for proposal (RFP) number 140P5126R0009 Blue Ridge Parkway Vista Clearing FY26 This document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular FAC 2025-06. This proposed acquisition will be 100% small business set-aside procurement. The NAICS code is 561730 Landscaping Services, Size Standards in Millions of dollars \$9.5M TYPE OF CONTRACT: Firm Fixed Price Line items include Base work + Items 1-3 Option Work The services consist of clearing scenic vistas along the Blue Ridge Parkway at designated locations in Virginia. These services include Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED☐ INSPECTED☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42a. RECEIVED BY (Print)

42b. RECEIVED AT (Location)

42c. DATE RECEIVED (MM/DD/YYYY)

42d. TOTAL CONTAINERS

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140P5126R0009	PAGE 3 OF 30

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	cutting trees, shrubs, brush, briars, and vines within specified depths of designated vistas, to provide vistas with clear and unobstructed views. Period of Performance 7/15/2026 to 9/30/2027 SYSTEM FOR AWARD MANAGEMENT (SAM): Federal Acquisition Regulations require that federal contractors register in the System for Award Management (SAM) database at https://www.sam.gov and enter all mandatory information into the system. Award cannot be made until the contractor has registered. Interested Offerors are encouraged to ensure that they are registered in SAM prior to submitting their quote. THESE REGISTRATIONS WILL BE COMPLETED BEFORE TIME OF AWARD. Site Visit: Offerors are encouraged to perform site visit at any time to inspect the site and fully understand the requirement and conditions. Vendor Questions cut-off date: May 26, 2026, 5:00 EDT send via-email to Ashley_Warcewicz@ios.doi.gov Request for Proposals closes June 8, 2026, 5:00PM EDT send via-email all proposals to Ashley_Warcewicz@ ios.doi.gov Delivery: 09/30/2027 Period of Performance: 07/15/2026 to 09/30/2027				
00010	Base Work - Mow without application of herbicide Vistas # 1 to 213 (Mile Post 0 to 98.9) Vistas # 273 to 280 (Mile Post 139.3 to 144.8) Product/Service Code: S208 Product/Service Description: HOUSEKEEPING-LANDSCAPING/GROUNDSKEEPING				
00020	Option 1 - Vistas # 214 to 272 (Mile Post 98.9 to 137.6) (Option Line Item) Anticipated Exercise Date 0 Product/Service Code: S208 Continued...				

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140P5126R0009	PAGE 4 OF 30
NAME OF OFFEROR OR CONTRACTOR		

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00030	Product/Service Description: HOUSEKEEPING-LANDSCAPING/GROUNDSKEEPING Option 2 - Apply herbicide were approved as indicated on Vista Log to first 30' of Base Work after cutting, Mile Post 0 to 98.9 (Option Line Item) Anticipated Exercise Date 0 Product/Service Code: S208 Product/Service Description: HOUSEKEEPING-LANDSCAPING/GROUNDSKEEPING				
00040	Option 3 - Apply herbicide were approved as indicated on Vista Log to first 30' of Option 1 Work after cutting, Mile Post 21 to 204 (Option Line Item) Anticipated Exercise Date 0 Product/Service Code: S208 Product/Service Description: HOUSEKEEPING-LANDSCAPING/GROUNDSKEEPING				

This is a combined synopsis/solicitation for commercial services prepared in accordance with the format in [subpart 12.6](#), as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; proposals are being requested and a written solicitation will not be issued. This project is for clearing scenic vistas along the Blue Ridge Parkway at designated locations in Virginia.

This is a Request for proposal (RFP) number 140P5126R0009 – Blue Ridge Parkway - Vista Clearing FY26

This document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular FAC 2025-06.

This proposed acquisition will be 100% small business set-aside procurement.

The NAICS code is 561730 Landscaping Services, Size Standards in Millions of dollars \$9.5M

TYPE OF CONTRACT: Firm Fixed Price

Line items include Base work + Items 1-3 Option Work

The services consist of clearing scenic vistas along the Blue Ridge Parkway at designated locations in Virginia. These services include cutting trees, shrubs, brush, briars, and vines within specified depths of designated vistas, to provide vistas with clear and unobstructed views.

Period of Performance 7/15/2026 to 9/30/2027

SYSTEM FOR AWARD MANAGEMENT (SAM): Federal Acquisition Regulations require that federal contractors register in the System for Award Management (SAM) database at <https://www.sam.gov> and enter all mandatory information into the system. Award cannot be made until the contractor has registered. Interested Offerors are encouraged to ensure that they are registered in SAM prior to submitting their quote. THESE REGISTRATIONS WILL BE COMPLETED BEFORE TIME OF AWARD.

Site Visit: Offerors are encouraged to perform site visit at any time to inspect the site and fully understand the requirement and conditions.

Vendor Questions cut-off date: May 26, 2026, 5:00 EDT send via-email to Ashley_Warcewicz@ios.doi.gov

Request for Proposals closes June 8, 2026, 5:00PM EDT send via-email all proposals to Ashley_Warcewicz@ios.doi.gov

Table of Contents

PART I - THE SCHEDULE.....	A-1
SECTION A - SOLICITATION/CONTRACT FORM.....	A-1
SF 1449 SOLICITATION, OFFER, AND AWARD NOTICE: SET-ASIDE FOR, SMALL BUSINESS	A-1
SECTION B – BID SCHEDULE.....	B-3
B.1 PRICE/COST SCHEDULE	B-1
B.2 SUPPLIES AND/OR SERVICES TO BE FURNISHED.....	B-2
B.3 CONSIDERATION -- FIXED-PRICE	B-3
SECTION C – SPECIFICATIONS/DRAWINGS.....	C-1
C.1 STATEMENT OF OBJECTIVES/SPECIFICATIONS	C-1
SECTION D - PACKAGING AND MARKING (N/A).....	D-1
SECTION E - INSPECTION AND ACCEPTANCE	E-2
E.1 INSPECTION AND ACCEPTANCE	E-2
SECTION F - DELIVERIES OR PERFORMANCE.....	F-4
F.1 PRINCIPAL PLACE OF PERFORMANCE	F-4
SECTION G - CONTRACT ADMINISTRATION DATA.....	G-3
G.1 IDENTIFICATION OF GOVERNMENT OFFICIALS.....	G-1
G.2 INVOICES.....	G-2
SECTION H - SPECIAL CONTRACT REQUIREMENTS	H-19
H.1 Site-Specific Safety Plan (RM-50B Chapter 21)	H-1
H.2 1452.228-70 Liability Insurance (JUL 1996).....	H-2
H.3 Notice to Contractors – Contractor performance Assessment Reporting System.....	H-3
PART II - CONTRACT CLAUSES.....	I-4
SECTION I - CONTRACT CLAUSES	I-1
I.1 NOTICE LISTING CONTRACT CLAUSES INCORPORATED BY REFERENCE	I-1
I.2 52.222-90 -Addressing DEI Discrimination by Federal Contractors (APR 2026).....	I-2
I.3 Wage Determination	I-3
PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS.....	J-1
SECTION J - LIST OF ATTACHMENTS.....	J-1
PART IV - REPRESENTATIONS AND INSTRUCTIONS.....	K-1
SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	K-1
K.1 52.209-13 Violation of Arms Control Treaties or agreements certification (NOV 2025)	K-2
K.2 52.219-1 Small Business Program Representations (NOV 2025).....	K-3
SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	L-1
L.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)	L-1
L.2 52.212-1 Instructions to Offerors – Commercial Items (NOV 2025)	L-1
SECTION M - EVALUATION FACTORS FOR AWARD	M-1
M.1. 52.212-2 EVALUATION – COMMERCIAL ITEMS (NOV 2025) TAILORED	

PART I - THE SCHEDULE

SECTION B – BID SCHEDULE

B.1 PRICE SCHEDULE

SCHEDULE A

Period of Performance: 7/15/2026 to 9/30/2027

B.2 SUPPLIES AND/OR SERVICES TO BE FURNISHED

Contractor shall provide all labor, materials, equipment, tools, and supervision to complete in accordance with the Performance Work Statement, technical specifications, terms and conditions contained in this solicitation to perform **Blue Ridge Parkway, Vista Clearing FY26**

B.3 CONSIDERATION -- FIXED-PRICE

Total Firm Fixed Price: Please submit Attachment 6 - Price Schedule

Price must be valid for 60 days.

SECTION C - DESCRIPTION/SPECIFICATIONS/STATEMENT OF WORK

C.1 STATEMENT OF WORK/SPECIFICATIONS

1. Performance Work Schedule

SECTION D - PACKAGING AND MARKING (N/A)

SECTION E - INSPECTION AND ACCEPTANCE

E.1 INSPECTION AND ACCEPTANCE

Final inspection and acceptance shall be by the Contracting Officer Representative (COR) at:

Inspection: **Blue Ridge Parkway Vistas in Virginia**

Acceptance: (Same as Above)

For the purpose of this clause, the Contracting Officer's Representative (COR) named in the Designation of COR clause in this contract is the representative of the Contracting Officer. The Contracting Officer reserves the right to unilaterally designate other Government agents as authorized representatives. Should such occur, the Contractor will be notified by a written notice.

SECTION F - DELIVERIES OR PERFORMANCE

F.1 PRINCIPAL PLACE OF PERFORMANCE

The effort required under this contract shall be performed at: **Blue Ridge Parkway Vistas in Virginia**

G - CONTRACT ADMINISTRATION DATA

G.1 IDENTIFICATION OF GOVERNMENT OFFICIALS

The Government Officials assigned to this contract are as follows:

Contracting Specialist:

Name: Ashley Warcewicz

Email: Ashley_Warcewicz@ios.doi.gov

Contracting Officer's Representative (COR):

Name: Jeffrey Curtis

Email: Jeffrey_Curtis@nps.gov

G.2 INVOICES

DOI ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS

Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:
INVOICE submitted and approved by COR before IPP.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

SECTION H - SPECIAL CONTRACT REQUIREMENTS

H.1 Site-Specific Safety Plan (RM-50B Chapter 21)

The Contractor shall develop, implement, and maintain a Site-Specific Safety Plan (SSSP) for this project in

accordance with NPS Reference Manual RM-50B, Chapter 21 – Contractor Operations (most current version). The SSSP shall:

- (1) Address the specific scope of work for this project and associated hazards in roadside/steep slope vegetation management.
- (2) Identify safety roles, responsibilities, and lines of authority; and
- (3) Include all applicable program elements and OSHA compliance plans required by RM-50B Chapter 21, section 21.9.

After contract award, but before any contract work begins, the Contractor shall submit the SSSP to the COR and NPS safety representative for review and evaluation. Work may not commence until the Contracting Officer has accepted the SSSP.

H.2 1452.228-70 LIABILITY INSURANCE Department of the Interior (JUL 1996)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

Construction

Per person: \$1,000,000

Per occurrence \$2,000,000

Property damage: \$2,000,000

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

H.3 NOTICE TO CONTRACTORS-CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (DEC 2015)

1. FAR 42.1502 direct all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.
2. The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.
3. We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the

evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4. When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.
5. Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.
 - a. Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment.
 - b. Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.
 - c. All information provided should be reviewed for accuracy prior to submission.
 - d. If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".
 - e. Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.
 - f. If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."
6. The following guidelines apply concerning your use of the past performance evaluation:
 - a. Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.
 - b. Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.
 - c. Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.
7. If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.
8. A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

PART II - CONTRACT CLAUSES

SECTION I - CONTRACT CLAUSES

I.1 NOTICE LISTING CONTRACT CLAUSES INCORPORATED BY REFERENCE

The following contract clauses pertinent to this section are hereby incorporated by reference (by Citation Number, Title, and Date) in accordance with the clause at FAR "52.252-2 CLAUSES INCORPORATED BY REFERENCE" in Section I of this contract. See FAR 52.252-2 for an internet address (if specified) for electronic access to the full text of a clause.

NUMBER	TITLE	DATE
52.202-1	Definitions	June 2020
52.203-5	Covenant Against Contingent Fees	May 2014
52.203-6	Restrictions on Subcontractor Sales to the Government	June 2020
52.203-6	Alternate I	November 2021
52.203-7	Anti-Kickback Procedures	June 2020
52.203-17	Contractor Employee Whistleblower Rights	November 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	January 2017
52.204-7	System for Award Management	November 2025
52.204-13	System for Award Management Maintenance	November 2025
52.204-19	Incorporation by Reference of Representations and Certifications	December 2014
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment	November 2025
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations—Representation	November 2025
52.212-4	Contract Terms and Conditions—Commercial Products and Commercial Services	November 2025
52.217-5	Evaluation of Options	November 2025
52.219-6	Notice of Small Business Set-Aside	November 2025
52.219-14	Limitations on Subcontracting	November 2025

NUMBER	TITLE	DATE
52.219-28	Post-Award Small Business Program Re-Representation	November 2025
52.222-3	Convict Labor	November 2025
52.222-35	Equal Opportunity for Veterans	November 2025
52.222-36	Affirmative Action for Workers with Disabilities	November 2025
52.222-37	Employment Reports on Veterans	November 2025
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	November 2025
52.222-41	Service Contract Labor Standards	November 2025
52.222-50	Combating Trafficking in Persons	November 2025
52.222-54	Employment Eligibility Verification	November 2025
52.222-55	Minimum Wages for Contractor Workers under Executive Order 14026	November 2025
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.232-1	Payments	April 1984
52.232-8	Discounts for Prompt Payment	February 2002
52.232-11	Extras	April 1984
52.232-18	Availability of Funds	April 1984
52.232-30	Installment Payments for Commercial Products and Commercial Services	November 2021
52.232-33	Payment by Electronic Funds Transfer—System for Award Management	October 2018

NUMBER	TITLE	DATE
52.232-39	Unenforceability of Unauthorized Obligations	June 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	March 2023
52.233-1	Disputes	November 2025
52.233-3	Protest After Award	November 2025
52.233-4	Applicable Law for Breach of Contract Claim	November 2025
52.237-2	Protection of Government Buildings, Equipment, and Vegetation	April 1984
52.243-1	Changes—Fixed Price	June 2025
52.244-6	Subcontracts for Commercial Products and Commercial Services	November 2025
52.249-1	Termination for Convenience of the Government (Fixed-Price—Short Form)	April 1984

1.2. 52.222-90 Addressing DEI Discrimination by Federal Contractors (APRIL 2026)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;
- (4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and
- (5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.
- (6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

I.3 WAGE DETERMINATION

In the performance of this contract the Contractor shall comply with the requirements of U.S. Department of Labor Wage Determinations and Minimum Wage Laws. **SCA Wage Determination Attachment 7**

PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS

SECTION J - LIST OF ATTACHMENTS

List of Documents, Exhibits and Other Attachments

Attachment Number	Attachment Title	Number of Pages	Document Version
0001	Performance Work Statement	14	BASE
0002	Vista Clearing Log Sheet	5	BASE
0003	Acceptable Vista Clearing	2	BASE
0004	Vista Master Spreadsheet	24	BASE
0005	Special Instructions	1	BASE
0006	Price Schedule	1	BASE
0007	Wage Determination	4	BASE

PART IV - REPRESENTATIONS AND INSTRUCTIONS

SECTION K - REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS

K.1 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (NOV 2025)

(A) THIS PROVISION DOES NOT APPLY TO ACQUISITIONS AT OR BELOW THE SIMPLIFIED ACQUISITION THRESHOLD OR TO ACQUISITIONS OF COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES AS DEFINED IN FEDERAL ACQUISITION REGULATION 2.101.

(B) CERTIFICATION. [OFFEROR SHALL CHECK EITHER (1) OR (2).]

___ (1) THE OFFEROR CERTIFIES THAT—

(I) IT DOES NOT ENGAGE AND HAS NOT ENGAGED IN ANY ACTIVITY THAT CONTRIBUTED TO OR WAS A SIGNIFICANT FACTOR IN THE PRESIDENT'S OR SECRETARY OF STATE'S DETERMINATION THAT A FOREIGN COUNTRY IS IN VIOLATION OF ITS OBLIGATIONS UNDERTAKEN IN ANY ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT AGREEMENT TO WHICH THE UNITED STATES IS A PARTY, OR IS NOT ADHERING TO ITS ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT COMMITMENTS IN WHICH THE UNITED STATES IS A PARTICIPATING STATE. THE DETERMINATIONS ARE DESCRIBED IN THE MOST RECENT UNCLASSIFIED ANNUAL REPORT PROVIDED TO CONGRESS PURSUANT TO SECTION 403 OF THE ARMS CONTROL AND DISARMAMENT ACT (22 U.S.C. 2593A). THE REPORT IS AVAILABLE AT [HTTPS://WWW.STATE.GOV/BUREAUS-OFFICES/UNDER-SECRETARY-FOR-ARMS-CONTROL-AND-INTERNATIONAL-SECURITY-AFFAIRS/BUREAU-OF-ARMS-CONTROL-VERIFICATION-AND-COMPLIANCE/](https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/); AND

(II) NO ENTITY OWNED OR CONTROLLED BY THE OFFEROR HAS ENGAGED IN ANY ACTIVITY THAT CONTRIBUTED TO OR WAS A SIGNIFICANT FACTOR IN THE PRESIDENT'S OR SECRETARY OF STATE'S DETERMINATION THAT A FOREIGN COUNTRY IS IN VIOLATION OF ITS OBLIGATIONS UNDERTAKEN IN ANY ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT AGREEMENT TO WHICH THE UNITED STATES IS A PARTY, OR IS NOT ADHERING TO ITS ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT COMMITMENTS IN WHICH THE UNITED STATES IS A PARTICIPATING STATE. THE DETERMINATIONS ARE DESCRIBED IN THE MOST RECENT UNCLASSIFIED ANNUAL REPORT PROVIDED TO CONGRESS PURSUANT TO SECTION 403 OF THE ARMS CONTROL AND DISARMAMENT ACT (22 U.S.C. 2593A). THE REPORT IS AVAILABLE AT [HTTPS://WWW.STATE.GOV/BUREAUS-OFFICES/UNDER-SECRETARY-FOR-ARMS-CONTROL-AND-INTERNATIONAL-SECURITY-AFFAIRS/BUREAU-OF-ARMS-CONTROL-VERIFICATION-AND-COMPLIANCE/](https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/); OR

___ (2) THE OFFEROR IS PROVIDING SEPARATE INFORMATION WITH ITS OFFER IN ACCORDANCE WITH PARAGRAPH (D)(2) OF THIS PROVISION.

(C) PROCEDURES FOR REVIEWING THE ANNUAL UNCLASSIFIED REPORT (SEE PARAGRAPH (B)(1) OF THIS PROVISION). FOR CLARITY, REFERENCES TO THE REPORT IN THIS SECTION REFER TO THE ENTIRETY OF THE ANNUAL UNCLASSIFIED REPORT, INCLUDING ANY SEPARATE REPORTS THAT ARE INCORPORATED BY REFERENCE INTO THE ANNUAL UNCLASSIFIED REPORT.

(1) CHECK THE TABLE OF CONTENTS OF THE ANNUAL UNCLASSIFIED REPORT AND THE COUNTRY SECTION HEADINGS OF THE REPORTS INCORPORATED BY REFERENCE TO IDENTIFY THE FOREIGN COUNTRIES LISTED THERE. DETERMINE WHETHER THE OFFEROR OR ANY PERSON OWNED OR CONTROLLED BY THE OFFEROR MAY HAVE ENGAGED IN ANY ACTIVITY RELATED TO ONE OR MORE OF SUCH FOREIGN COUNTRIES.

(2) IF SUCH ACTIVITY MIGHT HAVE OCCURRED, REVIEW ALL FINDINGS IN THE REPORT ASSOCIATED WITH THOSE FOREIGN COUNTRIES TO DETERMINE WHETHER OR NOT EACH SUCH FOREIGN COUNTRY WAS DETERMINED TO BE IN VIOLATION OF ITS OBLIGATIONS UNDERTAKEN IN AN ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT AGREEMENT TO WHICH THE UNITED STATES IS A PARTY, OR TO BE NOT ADHERING TO ITS ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT COMMITMENTS IN WHICH THE UNITED STATES IS A PARTICIPATING STATE. FOR CLARITY, IN THE ANNUAL REPORT AN EXPLICIT CERTIFICATION OF NON-COMPLIANCE IS EQUIVALENT TO A DETERMINATION OF VIOLATION. HOWEVER, THE FOLLOWING STATEMENTS IN THE ANNUAL REPORT ARE NOT

EQUIVALENT TO A DETERMINATION OF VIOLATION:

- (I) AN INABILITY TO CERTIFY COMPLIANCE.
- (II) AN INABILITY TO CONCLUDE COMPLIANCE.
- (III) A STATEMENT ABOUT COMPLIANCE CONCERNS.

(3) IF SO, DETERMINE WHETHER THE OFFEROR OR ANY PERSON OWNED OR CONTROLLED BY THE OFFEROR HAS ENGAGED IN ANY ACTIVITY THAT CONTRIBUTED TO OR IS A SIGNIFICANT FACTOR IN THE DETERMINATION IN THE REPORT THAT ONE OR MORE OF THESE FOREIGN COUNTRIES IS IN VIOLATION OF ITS OBLIGATIONS UNDERTAKEN IN AN ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT AGREEMENT TO WHICH THE UNITED STATES IS A PARTY, OR IS NOT ADHERING TO ITS ARMS CONTROL, NONPROLIFERATION, OR DISARMAMENT COMMITMENTS IN WHICH THE UNITED STATES IS A PARTICIPATING STATE. REVIEW THE NARRATIVE FOR ANY SUCH FINDINGS REFLECTING A DETERMINATION OF VIOLATION OR NON-ADHERENCE RELATED TO THOSE FOREIGN COUNTRIES IN THE REPORT, INCLUDING THE FINDING ITSELF, AND TO THE EXTENT NECESSARY, THE CONDUCT GIVING RISE TO THE COMPLIANCE OR ADHERENCE CONCERNS, THE ANALYSIS OF COMPLIANCE OR ADHERENCE CONCERNS, AND EFFORTS TO RESOLVE COMPLIANCE OR ADHERENCE CONCERNS.

(4) THE OFFEROR MAY SUBMIT ANY QUESTIONS WITH REGARD TO THIS REPORT BY EMAIL TO NDAA1290CERT@STATE.GOV. TO THE EXTENT FEASIBLE, THE DEPARTMENT OF STATE WILL RESPOND TO SUCH EMAIL INQUIRIES WITHIN 3 BUSINESS DAYS.

(D) DO NOT SUBMIT AN OFFER UNLESS—

- (1) A CERTIFICATION IS PROVIDED IN PARAGRAPH (B)(1) OF THIS PROVISION AND SUBMITTED WITH THE OFFER; OR
- (2) IN ACCORDANCE WITH PARAGRAPH (B)(2) OF THIS PROVISION, THE OFFEROR PROVIDES WITH ITS OFFER INFORMATION THAT THE PRESIDENT OF THE UNITED STATES HAS

- (I) WAIVED APPLICATION UNDER [22 U.S.C. 2593E](#)(D) OR (E); OR
- (II) DETERMINED UNDER [22 U.S.C. 2593E](#)(G)(2) THAT THE ENTITY HAS CEASED ALL ACTIVITIES FOR WHICH MEASURES WERE IMPOSED UNDER [22 U.S.C. 2593E](#)(B).

(E) REMEDIES. THE CERTIFICATION IN PARAGRAPH (B)(1) OF THIS PROVISION IS A MATERIAL REPRESENTATION OF FACT UPON WHICH RELIANCE WAS PLACED WHEN MAKING AWARD. IF THE GOVERNMENT LATER DETERMINES THAT THE OFFEROR KNOWINGLY SUBMITTED A FALSE CERTIFICATION, IN ADDITION TO OTHER REMEDIES AVAILABLE TO THE GOVERNMENT, SUCH AS SUSPENSION OR DEBARMENT, THE CONTRACTING OFFICER MAY TERMINATE ANY CONTRACT RESULTING FROM THE FALSE CERTIFICATION.

K.2. 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS.

(A) DEFINITIONS. AS USED IN THIS PROVISION-

ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) CONCERN MEANS A SMALL BUSINESS CONCERN THAT IS AT LEAST 51 PERCENT DIRECTLY AND UNCONDITIONALLY OWNED BY, AND THE MANAGEMENT AND DAILY BUSINESS OPERATIONS OF WHICH ARE CONTROLLED BY, ONE OR MORE WOMEN WHO ARE CITIZENS OF THE UNITED STATES AND WHO ARE ECONOMICALLY DISADVANTAGED IN ACCORDANCE WITH 13 CFR PART 127, AND THE CONCERN IS CERTIFIED BY SBA OR AN APPROVED THIRD-PARTY CERTIFIER IN ACCORDANCE WITH 13 CFR 127.300. IT AUTOMATICALLY QUALIFIES AS A WOMEN-OWNED SMALL BUSINESS CONCERN ELIGIBLE UNDER THE WOSB PROGRAM.

HUBZONE SMALL BUSINESS CONCERN MEANS A SMALL BUSINESS CONCERN THAT MEETS THE REQUIREMENTS DESCRIBED IN [13 CFR 126.200](#), IS CERTIFIED BY THE SMALL BUSINESS ADMINISTRATION (SBA) AND DESIGNATED BY SBA AS A HUBZONE SMALL BUSINESS CONCERN IN THE SMALL BUSINESS SEARCH (SBS) ([13 CFR 126.103](#)). SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) CONCERN ELIGIBLE UNDER THE SDVOSB PROGRAM MEANS AN SDVOSB CONCERN THAT IS DESIGNATED IN THE SYSTEM FOR AWARD MANAGEMENT (SAM) AS CERTIFIED BY THE SMALL BUSINESS ADMINISTRATION (SBA) IN ACCORDANCE WITH 13 CFR 128.300.

SMALL BUSINESS CONCERN—

(1) MEANS A CONCERN, INCLUDING ITS AFFILIATES, THAT IS INDEPENDENTLY OWNED AND OPERATED, NOT DOMINANT IN ITS FIELD OF OPERATION, AND QUALIFIED AS A SMALL BUSINESS UNDER THE CRITERIA IN 13 CFR PART 121 AND THE SIZE STANDARD IN PARAGRAPH (B) OF THIS PROVISION.

(2) AFFILIATES, AS USED IN THIS DEFINITION, MEANS BUSINESS CONCERNS, ONE OF WHOM DIRECTLY OR INDIRECTLY CONTROLS OR HAS THE POWER TO CONTROL THE OTHERS, OR A THIRD PARTY OR PARTIES CONTROL OR HAVE THE POWER TO CONTROL THE OTHERS. IN DETERMINING WHETHER AFFILIATION EXISTS, CONSIDERATION IS GIVEN TO ALL APPROPRIATE FACTORS INCLUDING COMMON OWNERSHIP, COMMON MANAGEMENT, AND CONTRACTUAL RELATIONSHIPS. SBA DETERMINES AFFILIATION BASED ON THE FACTORS SET FORTH AT 13 CFR 121.103.

SMALL DISADVANTAGED BUSINESS CONCERN MEANS A SMALL BUSINESS CONCERN THAT-

(1) IS AT LEAST 51 PERCENT UNCONDITIONALLY AND DIRECTLY OWNED (AS DEFINED AT 13 CFR 124.105) BY ONE OR MORE SOCIALLY DISADVANTAGED (AS DEFINED AT 13 CFR 124.103) AND ECONOMICALLY DISADVANTAGED (AS DEFINED AT 13 CFR 124.104) INDIVIDUALS WHO ARE CITIZENS OF THE UNITED STATES, AND

(2) THE MANAGEMENT AND DAILY BUSINESS OPERATIONS OF WHICH ARE CONTROLLED (AS DEFINED AT 13 CFR 124.106) BY INDIVIDUALS WHO MEET THE CRITERIA IN PARAGRAPH (1) OF THIS DEFINITION.

WOMEN-OWNED SMALL BUSINESS (WOSB) CONCERN ELIGIBLE UNDER THE WOSB PROGRAM (IN ACCORDANCE WITH 13 CFR PART 127) MEANS A SMALL BUSINESS CONCERN THAT IS AT LEAST 51 PERCENT DIRECTLY AND UNCONDITIONALLY OWNED BY, AND THE MANAGEMENT AND DAILY BUSINESS OPERATIONS OF WHICH ARE CONTROLLED BY, ONE OR MORE WOMEN WHO ARE CITIZENS OF THE UNITED STATES, AND THE CONCERN IS CERTIFIED BY SBA OR AN APPROVED THIRD-PARTY CERTIFIER IN ACCORDANCE WITH 13 CFR 127.300.

(B)

(1) THE NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODE FOR THIS ACQUISITION IS **561730**.

(2) THE SMALL BUSINESS SIZE STANDARD IS **\$9.5M**.

(3) THE SMALL BUSINESS SIZE STANDARD FOR A CONCERN THAT SUBMITS AN OFFER, OTHER THAN ON A CONSTRUCTION OR SERVICE ACQUISITION, BUT PROPOSES TO FURNISH AN END ITEM THAT IT DID NOT ITSELF MANUFACTURE, PROCESS, OR PRODUCE (I.E., NONMANUFACTURER), IS 500 EMPLOYEES, OR 150 EMPLOYEES FOR INFORMATION TECHNOLOGY VALUE-ADDED RESELLERS UNDER NAICS CODE 541519, IF THE ACQUISITION—

(i) IS SET ASIDE FOR SMALL BUSINESS AND HAS A VALUE ABOVE THE SIMPLIFIED ACQUISITION THRESHOLD;

(ii) USES THE HUBZONE PRICE EVALUATION PREFERENCE REGARDLESS OF DOLLAR VALUE, UNLESS THE OFFEROR WAIVES THE PRICE EVALUATION PREFERENCE; OR

(iii) IS AN 8(A), HUBZONE, SERVICE-DISABLED VETERAN-OWNED, ECONOMICALLY DISADVANTAGED WOMEN-OWNED, OR WOMEN-OWNED SMALL BUSINESS SET-ASIDE OR SOLE-SOURCE AWARD REGARDLESS OF DOLLAR VALUE.

(C) REPRESENTATIONS.

(1) THE OFFEROR REPRESENTS AS PART OF ITS OFFER THAT—

(i) IT ☐ IS, ☐ IS NOT A SMALL BUSINESS CONCERN; OR

(ii) IT ☐ IS, ☐ IS NOT A SMALL BUSINESS JOINT VENTURE THAT COMPLIES WITH THE REQUIREMENTS OF 13 CFR 121.103(H) AND 13 CFR 125.8(A) AND (B). [THE OFFEROR SHALL ENTER THE NAME AND UNIQUE ENTITY IDENTIFIER OF EACH PARTY TO THE JOINT VENTURE: ____.]

(2) [COMPLETE ONLY IF THE OFFEROR REPRESENTED ITSELF AS A SMALL BUSINESS CONCERN IN PARAGRAPH (C)(1) OF THIS PROVISION.] THE OFFEROR REPRESENTS THAT IT ☐ IS, ☐ IS NOT A WOMEN-OWNED SMALL DISADVANTAGE BUSINESS CONCERN.

(3) WOMEN-OWNED SMALL BUSINESS (WOSB) JOINT VENTURE ELIGIBLE UNDER THE WOSB PROGRAM. THE OFFEROR REPRESENTS AS PART OF ITS OFFER THAT IT ☐ IS, ☐ IS NOT A JOINT VENTURE THAT COMPLIES WITH THE REQUIREMENTS OF 13 CFR 127.506(A) THROUGH (C). [THE OFFEROR SHALL ENTER THE NAME AND UNIQUE ENTITY

IDENTIFIER OF EACH PARTY TO THE JOINT VENTURE: ____.]

(4) ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) JOINT VENTURE. THE OFFEROR REPRESENTS AS PART OF ITS OFFER THAT IT ☐ IS, ☐ IS NOT A JOINT VENTURE THAT COMPLIES WITH THE REQUIREMENTS OF 13 CFR 127.506(A) THROUGH (C). [THE OFFEROR SHALL ENTER THE NAME AND UNIQUE ENTITY IDENTIFIER OF EACH PARTY TO THE JOINT VENTURE: ____.]

(5) SDVOSB JOINT VENTURE ELIGIBLE UNDER THE SDVOSB PROGRAM. [COMPLETE ONLY IF THE OFFEROR IS CERTIFIED AS A SDVOSB CONCERN]. THE OFFEROR REPRESENTS AS PART OF ITS OFFER THAT IT ☐ IS, ☐ IS NOT A SDVOSB JOINT VENTURE ELIGIBLE UNDER THE SDVOSB PROGRAM THAT COMPLIES WITH THE REQUIREMENTS OF 13 CFR 128.402. [THE OFFEROR SHALL ENTER THE NAME AND UNIQUE ENTITY IDENTIFIER OF EACH PARTY TO THE JOINT VENTURE: ____.]

(6) HUBZONE JOINT VENTURE ELIGIBLE UNDER THE HUBZONE PROGRAM. [COMPLETE ONLY IF THE OFFEROR IS A HUBZONE SMALL BUSINESS CONCERN.] THE OFFEROR REPRESENTS, AS PART OF ITS OFFER, THAT IT ☐ IS, ☐ IS NOT A HUBZONE JOINT VENTURE THAT COMPLIES WITH THE REQUIREMENTS OF 13 CFR 126.616(A) THROUGH (C). [THE OFFEROR SHALL ENTER THE NAME AND UNIQUE ENTITY IDENTIFIER OF EACH PARTY TO THE JOINT VENTURE: ____.] EACH HUBZONE SMALL BUSINESS CONCERN PARTICIPATING IN THE HUBZONE JOINT VENTURE MUST BE CERTIFIED AS A HUBZONE CONCERN.

(D) NOTICE. UNDER 15 U.S.C. 645(D), ANY PERSON WHO MISREPRESENTS A FIRM'S STATUS AS A BUSINESS CONCERN THAT IS SMALL, HUBZONE SMALL, SMALL DISADVANTAGED, SERVICE-DISABLED VETERAN-OWNED SMALL, ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL, OR WOMEN-OWNED SMALL ELIGIBLE UNDER THE WOSB PROGRAM IN ORDER TO OBTAIN A CONTRACT TO BE AWARDED UNDER THE PREFERENCE PROGRAMS ESTABLISHED PURSUANT TO SECTION 8, 9, 15, 31, AND 36 OF THE SMALL BUSINESS ACT OR ANY OTHER PROVISION OF FEDERAL LAW THAT SPECIFICALLY REFERENCES SECTION 8(D) FOR A DEFINITION OF PROGRAM ELIGIBILITY, WILL BE—

(1) PUNISHED BY IMPOSITION OF FINE, IMPRISONMENT, OR BOTH;

(2) SUBJECT TO ADMINISTRATIVE REMEDIES, INCLUDING SUSPENSION AND DEBARMENT; AND

(3) INELIGIBLE FOR PARTICIPATION IN PROGRAMS CONDUCTED UNDER THE AUTHORITY OF THE ACT.

(END OF PROVISION)

ALTERNATE I [RESERVED]

ALTERNATE II (MAR 2023). AS PRESCRIBED IN 19.101(A)(2)(II)(B), SUBSTITUTE THE FOLLOWING PARAGRAPHS (B) AND (C)(1) FOR PARAGRAPHS (B) AND (C)(1) OF THE BASIC PROVISION:

(B)(1) THE NORTH AMERICAN INDUSTRY CLASSIFICATION SYSTEM (NAICS) CODES AND CORRESPONDING SIZE STANDARDS FOR THIS ACQUISITION ARE AS FOLLOWS; THE CATEGORIES OR PORTIONS THESE NAICS CODES ARE ASSIGNED TO ARE SPECIFIED ELSEWHERE IN THE SOLICITATION:

NAICS CODE	SIZE STANDARD
_____	_____
_____	_____
_____	_____

[CONTRACTING OFFICER TO INSERT NAICS CODES AND SIZE STANDARDS].

(2) THE SMALL BUSINESS SIZE STANDARD FOR A CONCERN THAT SUBMITS AN OFFER, OTHER THAN ON A CONSTRUCTION OR SERVICE ACQUISITION, BUT PROPOSES TO FURNISH AN END ITEM THAT IT DID NOT ITSELF MANUFACTURE, PROCESS, OR PRODUCE (I.E., NONMANUFACTURER), IS 500 EMPLOYEES, OR 150 EMPLOYEES FOR 140P5126R0009 – Blue Ridge Parkway - Vista Clearing FY26

INFORMATION TECHNOLOGY VALUE-ADDED RESELLERS UNDER NAICS CODE 541519, IF THE ACQUISITION—

(I) IS SET ASIDE FOR SMALL BUSINESS AND HAS A VALUE ABOVE THE SIMPLIFIED ACQUISITION THRESHOLD;

(II) USES THE HUBZONE PRICE EVALUATION PREFERENCE REGARDLESS OF DOLLAR VALUE, UNLESS THE OFFEROR WAIVES THE PRICE EVALUATION PREFERENCE; OR

(III) IS AN 8(A), HUBZONE, SERVICE-DISABLED VETERAN-OWNED, ECONOMICALLY DISADVANTAGED WOMEN-OWNED, OR WOMEN-OWNED SMALL BUSINESS SET-ASIDE OR SOLE-SOURCE AWARD REGARDLESS OF DOLLAR VALUE.

(C) REPRESENTATIONS. (1) THE OFFEROR SHALL REPRESENT ITS SMALL BUSINESS SIZE STATUS FOR EACH ONE OF THE NAICS CODES ASSIGNED TO THIS ACQUISITION UNDER WHICH IT IS SUBMITTING AN OFFER.

NAICS CODE	SMALL BUSINESS CONCERN (YES/NO)
_____	_____
_____	_____
_____	_____

[CONTRACTING OFFICER TO INSERT NAICS CODES.]

SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its Proposal or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its Proposal or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<http://www.acquisition.gov/far/index.html>

Clause number	Title	Date
52.233-2	Service of Protest	Nov 2025
52.237-1	Site Visit	Apr 1984

L.2 FAR 52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (NOV 2025)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the 140P5126R0009 – Blue Ridge Parkway - Vista Clearing FY26

small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Is set aside for small business and has a value above the simplified acquisition threshold;

(2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the [SF 1449](#), letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

(1) The solicitation number;

(2) The time specified in the solicitation for receipt of offers;

(3) The name, address, and telephone number of the offeror;

(4) A technical description of qualifications as described below.

(5) Terms of any express warranty;

(6) Price and any discount terms;

(7) "Remit to" address, if different than mailing address;

(8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) [52.212-3](#) (see FAR [52.212-3\(b\)](#) for those representations and certifications that the offeror shall complete electronically);

(9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the [SF 1449](#), include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for **60 calendar days** from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR [subpart 4.10](#)), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2) (i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an

extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1) (i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101–29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by—

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571–767–6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR [subpart 32.11](#)) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

1.1 POINT OF CONTACT

The Contracting Specialist (CS), Ashley Warcewicz the point of contact for this acquisition.

Address any questions or concerns to the CS. Written requests for clarification may be sent via e-mail to the CO at Ashley_Warcewicz@ios.doi.gov. Official RFP documentation, including RFP amendments, and other related information will be available on the Internet at SAM.gov.

1.2 COMMUNICATIONS

1. All communications with regard to this solicitation should be directed to Ashley Warcewicz, Contract Specialist, who may be contacted by email at: Ashley_Warcewicz@ios.doi.gov Telephone inquiries will not be accepted.

2. Preproposal Conference/Site visit N/A

3. Offerors must submit **all questions concerning this solicitation, in writing**, to the contract specialist identified above. All questions must be submitted **no later than May 26, 2026, 5pm EDT. To:**

Ashley_Warcewicz@ios.doi.gov

Answers to all relevant and appropriate questions will be posted as an amendment to the solicitation. In the event multiple questions address the same issue the Government reserves the right to answer a representative question that best exemplifies the issue.

1.3 PROPOSAL CLARITY

The proposal shall be clear, concise, and include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The proposal shall not simply rephrase or restate the Government's requirements, but rather shall provide convincing rationale to address how the offeror intends to meet the requirements. The offeror shall assume that the Government has no prior knowledge of the Contractor's capabilities and experience and will base its evaluation on the information presented in its proposal. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussion.

1.4 RESTRICTIONS ON DISCLOSURE AND USE OF PROPOSAL

A proposal may include data, such as technical designs or concepts, financial data, or management plans that the offeror does not want disclosed to the public for any reason or used by the Government for any purpose other than proposal evaluation and contract award. If the offeror wishes to restrict the proposal, the offeror shall mark it in accordance with FAR 52.215-1.

1.5 DISPOSITION OF PROPOSAL

In accordance with FAR Subpart 4.8, Government Contract Files, the Government will retain the "original" copy of all proposals and supplemental documents provided. Unless the offeror requests otherwise, at the completion of this acquisition the Government will destroy all extra copies of proposals and additional documents submitted.

1.6 DISCREPANCIES

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the CO in writing with supporting rationale. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussion.

1.7 GOVERNMENT FURNISHED PROPERTY/INFORMATION

The government will not provide any Government Furnished Property under this contract.

1.8 DISTRIBUTION/SUBMISSION/QUOTATION VOLUMES

Proposals shall be e-mailed to the Contract Specialist, No Later Than: 5:00 PM EDT June 8, 2026 at the following address: Ashley_Warcewicz@ios.doi.gov please state the RFQ 140P5126R0009 in your e-mail subject line. No Hard Copies will be accepted.

1.9 QUOTATION PREPARATION INSTRUCTIONS

The offeror shall prepare the proposals set forth in the Proposal Organization Table 2.1 below. The titles and contents of the volumes shall be as defined in this table, all of which shall be within the required page limits and with the specified number of copies. The proposal organization shall be as follows:

2.1 QUOTATION ORGANIZATION TABLE

TABLE 2.1 Proposal Organization Table				
Volum e	Volume Title	Page Limit	Copies	Due Date (NLT*)
I	Introduction	5 page limit	1 electronic copy e-mail	5:00 EDT on June 8, 2026
II	Technical Proposal	10-page limit	1 electronic copy e-mail	5:00 EDT on June 8, 2026
III	Past Performance	10-page limit	1 electronic copy e-mail	5:00 EDT on June 8, 2026
IV	Price - Attachment 6	1-page limit	1 electronic copy e-mail	5:00 EDT on June 8, 2026
V	Contract Documentation	No page limit	1 electronic copy e-mail	5:00 EDT on June 8, 2026

2.2 QUOTATION FORMAT AND CONTENT

2.2.1 PAGE LIMITATIONS

Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read or considered in the evaluation of the proposal and (for paper copies) will not be returned to the offeror. For electronic submission, no hidden fields, macros, comments, etc., will be read. All information must be written clearly and be easily accessible. When both sides of a sheet of paper display printed material, it shall be counted as two pages. Each volume shall contain a detailed table of contents to delineate what is in the respective volume, which will not be counted in the page limits. In addition the following also will not be counted in the maximum page limits: cover pages, tabs, glossaries, cross-reference matrix, and organizational charts.

2.2.2 PAGE SIZE

Page size shall be 8.5 x 11 inches, not including foldouts. Pages shall be single-spaced. Except for the reproduced sections of the solicitation document, the text size shall be no less than Times New Roman 10 point. Use at least 1-inch margins on all sides of each page. Pages shall be numbered sequentially by volume.

2.2.3 TABLES, CHARTS, GRAPHS, AND FIGURES

Legible tables, charts, graphs and figures may be used wherever practical to depict systems and layout, implementation schedules, plans, etc. These displays shall be legible, easy to follow and shall not exceed 11 by 17 inches in size. Foldout pages shall fold entirely within the volume and count as two pages (except organizational charts and cross reference matrices). Foldout pages may only be used for large tables, charts, graphs, diagrams and schematics, not for pages of text. For tables, charts, graphs and figures, the font shall be no smaller than eight (8) point.

2.2.4 CROSS-REFERENCE MATRIX

To the greatest extent possible, each volume shall be written on a stand-alone basis so that its contents may be evaluated with minimal cross-referencing to other volumes of the proposal. Cross-referencing within a proposal volume is permitted where its use would conserve space without impairing clarity. The offeror shall provide a cross-reference matrix indicating the corresponding proposal paragraph in that section and/or volume which addresses the referenced item. Information required for proposal evaluation that is not found in its designated volume will be assumed omitted from the proposal. The cross-reference matrix will not count against the page limitations for their respective volumes.

2.2.5 TAB INDEXING

Each volume shall contain a detailed table of contents to delineate the subparagraphs within that volume. Tab indexing shall be used to identify sections. Indexes and tabs do not count against the page limitations for their respective volumes.

2.2.6 GLOSSARY OF TERMS

Each volume shall contain a glossary of all abbreviations, acronyms and/or terms used, with an explanation for each. Glossaries do not count against the page limitations for their respective volumes.

2.2.8 ELECTRONIC MEDIA OFFERS AND SUBMISSION

The offeror shall submit all volumes in an electronic “read only” format using virus-free e-mail. The electronic copies of the proposal shall be submitted in a format readable and usable by Microsoft 2003 (or later) Office suite (MS Word, MS Excel, Power Point). Hidden fields, comments, macros, etc., shall be omitted. The files shall be consistent and uniformly named to allow for easy distinction by Volume, Tab, etc. Inclusion of company name or abbreviation is acceptable. An example of this would be: V-II ArchSysEng, V-II ArchSysEng Table3-1, or XYZ Co. Vol-II-TabA.

3.0. VOLUME I - INTRODUCTION

3.1 FORMAT AND SPECIFIC CONTENTS

3.1.1 INTRODUCTION

The purpose of this section is to provide the Government with an introduction about the offeror. This should include information such as SAM ID, business address, offerors point of contact, socioeconomic classification, and a description about the company. Material presented in the introduction will not be evaluated.

3.1.2 TABLE OF CONTENTS

Include a Master Table of Contents for the entire proposal.

4.0 VOLUME II – TECHNICAL VOLUME

The Technical proposal should be specific and complete. Legibility, clarity and coherence are very important. Offerors responses to the factor will be evaluated in accordance with the evaluation section of the solicitation. All the requirements specified in the solicitation are mandatory. By your proposal submission you are representing that your firm will perform all the requirements specified in the RFP. A written technical proposal shall be submitted addressing the evaluation factors contained within the RFP.

The offeror will address its proposed approach to meeting the objectives of each subfactor. Offeror's proposal shall be organized according to the following general outline:

4.1 QUALIFICATIONS

The Government will evaluate the offeror's capabilities to meet the qualification requirements to include the following:

4.1.1 Experience and qualifications of the contractor and/or subcontractor to include: At least 2 years of experience in vista clearing or brush clearing landscaping projects, availability of certified professionals, track record of successfully completing similar projects. Similar projects defined as brush clearing projects of value \$50,000 or more.

4.1.2 Contractor and/or its subcontractor's ability must demonstrate their commitment to safety and provide evidence of a strong safety performance history through the following:

- 1. Provide a summary of staff safety certifications to include OSHA, first aid**
- 2. Provide a summary of all workers comp claims over past 3-year period**
- 3. Provide a summary of safety policies and programs for dealing with potentially hazardous situations to specifically include working near roadway, managing traffic control, and unstable steep terrain.**

5.0 VOLUME III – PAST PERFORMANCE

The offeror shall provide documentation of past performance of contracts within and outside the federal government performing services equivalent to the services identified within the PWS. The offeror must provide a contract number (if available), description of the services provided, information on problems encountered on the identified contracts and the offerors corrective actions, and total dollar amount of award.

6.0 VOLUME IV – PRICE VOLUME

6.1 PRICE

The offeror shall provide Firm Fixed Priced Price **Attachment 6**

6.2 PRICE INFORMATION

Information beyond that required by this instruction shall not be submitted, unless you consider it essential to document or support your price position. All information relating to the proposed price, including all required supporting documentation shall be included in the section of the proposal designated as the Price Volume. Any Guaranteed Sub-Category Minimum Discount that differs significantly from industry norms shall be justified and supported with examples of where similar discounts were given by the offeror, including date, quantity sold, item sold, catalog price, specific catalog used, discount, and other explanatory information.

7.0 VOLUME V – CONTRACT VOLUME

7.1 CONTRACT DOCUMENTS

- (a) The Offeror's Contract Documentation volume shall include: an original SIGNED copy of the Contract/Solicitation (including all addendums, contract documents, exhibits, attachments, and solicitation provisions).

M.1. 52.212-2 EVALUATION – COMMERCIAL ITEMS (NOV 2025) TAILORED

1.0 INTRODUCTION

This section defines the evaluation criteria the Government will consider in evaluating the Offeror's proposal to determine each offeror's capability. The Government intends to award one Firm Fixed Priced contract based on the Lowest Price Technically Acceptable (LPTA) process described herein.

2.0 BASIS FOR AWARD

(a) This acquisition will utilize Lowest Price Technically Acceptable (LPTA) source selection procedures in accordance with [FAR 15.101-2](#), as supplemented. Technical tradeoffs will not be made and no additional credit will be given for exceeding acceptability. Awards will be made to the acceptable offerors with the lowest evaluated price, which is deemed responsible in accordance with the Federal Acquisition Regulation and whose proposals meet all required terms and conditions, meet all technical requirements, conform to and include all required certifications. The Government reserves the right to award without discussions, therefore, each initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if determined necessary by the Contracting Officer.

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, emailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

2.1 LPTA EVALUATION METHODOLOGY

Technical acceptability will be evaluated on all offers. Only those offerors determined to be technically acceptable, either initially or as a result of discussions, if discussions are conducted, will be considered for award. Then, price will be evaluated and the proposals will be listed from lowest to highest price based on the total price including all CLINs and Options. In accordance with FAR 12.602, Streamlined Evaluation of Offers, the following factors will be evaluated: Technical and Price.

2.2 DISCREPANCIES

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the CO in writing with supporting rationale as well as the remedies the offeror is asking the CO to consider as related to the omission or error. The offeror is reminded that the Government reserves the right to award this effort based on the initial proposal, as received, without discussion. IAW FAR 15.306(a)(2), if award will be made without conducting discussions, offerors may be given the opportunity to clarify certain aspects of proposals.

3.0 EVALUATION FACTORS

The Government will evaluate for acceptability the factors and sub-factors described below:

Factor 1: Technical Qualifications

Factor 2: Price

3.1 TECHINCAL QUALIFICATIONS

The Government will evaluate the offeror's capabilities to meet the qualification requirements to include the following:

3.1.1 Will review experience and qualifications of the contractor and/or subcontractor to inspect for at least 2 years of experience in vista clearing or brush clearing landscaping projects, availability of certified professionals, track record of successfully completing similar projects. Similar projects defined as brush clearing projects of value \$50,000 or more. (pass/fail)

3.1.2 Will Review contractor and/or its subcontractor's ability must demonstrate their commitment to safety and provide evidence of a strong safety performance history through the following:

- 1. Provide a summary of staff safety certifications to include OSHA, first aid**
- 2. Provide a summary of all workers comp claims over past 3-year period**
- 3. Provide a summary of safety policies and programs for dealing with potentially hazardous situations to specifically include working near roadway, managing traffic control, and unstable steep terrain.**

(Pass/Fail)

4.0 PAST PERFORMANCE

Past Performance will be evaluation in accordance with FAR 15.305(a)(2). Offerors will be evaluated on the offeror's ability to perform the requirements equivalent to the requirements within the PWS. In accordance with FAR 15.305(a)(2)(iv) in the case of an offeror without a record of relevant past performance for whom information on past performance is not available, the offeror may not be evaluated favorably or unfavorably on past performance.

5.0 FACTOR 2 – PRICE

The government will list proposals from lowest to highest price of all offerors found technically acceptable and based on the total price including all CLINs and Options.

Submit FIRM FIXED PRICE Attachment 6

6.0 CONTRACT DOCUMENTATION

6.1 RESPONSIBILITY DETERMINATION

The contracting officer will make a responsibility determination for potential offererors IAW FAR 9.104-1. Responsibility information may be gathered from both Government (such as CPARS and DCMA) and commercial sources. Only those offerors that the Contracting Officer determines to be responsible will be eligible for award. If the contracting officer makes a determination of nonresponsibility, and the offeror is a small business, it will be referred to the Small Business Administration pursuant to FAR 15.101-2(b) and 19.6.

7.0 SOLICITATION REQUIREMENTS, TERMS AND CONDITIONS

140P5126R0009 – Blue Ridge Parkway - Vista Clearing FY26

Offerors are required to meet all solicitation requirements, such as terms and conditions, completed representations and certifications, and technical requirements, in addition to those identified as evaluation factors or sub-factors. Failure to meet a requirement may result in an offer being ineligible for award.